



Republic of the Philippines
Province of Laguna
City of Biñan

OFFICE OF THE CITY COUNCIL

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EXCERPT FROM THE MINUTES OF REGULAR SESSION OF THE CITY COUNCIL OF BIÑAN HELD AT THE AMBROSIO RIANZARES BAUTISTA HALL AT CITY HALL ANNEX BUILDING, BARANGAY ZAPOTE, CITY OF BIÑAN, PROVINCE OF LAGUNA DATED 04 MARCH 2025.

PRESENT:

Hon. ANGELO B. ALONTE	- City Vice Mayor/ Presiding Officer
Hon. JONALINA R. REYES	- Councilor
Hon. LIBUNERO O. ALATHIT	- Councilor
Hon. ROMMEL R. DICDICAN	- Councilor
Hon. FLAVIANO D. PECAÑA, JR.	- Councilor
Hon. JAYSON A. SOUZA	- Councilor
Hon. VICTOR L. CARIÑO	- Councilor
Hon. ELMARIO B. DIMARANAN	- Councilor
Hon. RAFAEL L. CARDEÑO, JR.	- Councilor
Hon. ALVIN Z. GARCIA	- Councilor
Hon. ELVIS L. BEDIA	- Councilor
Hon. JOSE FRANCISCO RUBEN P. YATCO	- Councilor
Hon. GEMINIANO B. CATALON	- ABC-Federation President
GERONIMO D. ROMANTIGUE, MDMG	- City Council Secretary

GUESTS:

Legislative Staff of the City Government of Biñan

ABSENT:

Hon. CHRISTOPHER A. ALBA	- Councilor
Hon. ALONZO KYNE S. GARCIA	- SK-Federation President

CITY ORDINANCE NO. 1- (2025)

AN ORDINANCE REGULATING VLOGGING ACTIVITIES WITHIN THE HISTORICAL AND HERITAGE SITES OF THE CITY OF BIÑAN TO PRESERVE CULTURAL INTEGRITY AND AVOID DESECRATION, AND IMPOSING PENALTIES FOR VIOLATIONS

Authored by: Hon. Jonalina R. Reyes

WHEREAS, the 1987 Constitution of the Philippines, under Article XIV, Section 15, mandates the State to conserve, promote, and protect the nation's cultural heritage, its historical and religious sites, and works of art;

WHEREAS, Republic Act No. 10066, or the National Cultural Heritage Act of 2009, declares that cultural property is a non-renewable resource that requires appropriate protection and conservation measures, and mandates local government units (LGUs) to regulate activities that may impact cultural heritage properties;

*Approved by the Sangguniang Panlalawigan, as per Res. No. 519, s. 2025
dated May 5, 2025*

WHEREAS, City Ordinance No. 21-2021, also known as the "Biñan Culture, History, and Arts Code," legally recognizes and protects the city's local heritage and historical sites, ensuring their proper management, conservation, and public appreciation;

WHEREAS, Biñan is home to several historical and heritage sites, including but not limited to the Plaza Rizal, Historic Alberto Mansion, Sentrong Pangkultura ng Biñan, and the School of Rizal Site and Museum, which are protected under local and national heritage laws;

WHEREAS, the rise of vlogging, digital content creation, and online broadcasting has significantly impacted heritage sites, with instances of unauthorized filming, improper use of historical structures as props, and activities that compromise cultural integrity and conservation efforts;

WHEREAS, there have been reports of cultural sites being misrepresented, used for commercial gain without permission, or subjected to activities that may cause physical damage, defacement, or public misinterpretation, necessitating clear guidelines for responsible content creation;

WHEREAS, there is a need to regulate vlogging activities within Biñan's historical and heritage sites to ensure that digital content production respects historical accuracy, cultural sensitivity, and site preservation, while still allowing creative expression within ethical and legal boundaries;

THEREFORE, BE IT ENACTED BY THE SANGGUNIAN NG PANLUNGSOD NG BIÑAN, PROVINCE OF LAGUNA, IN SESSION ASSEMBLED:

SECTION 1. TITLE.

This ordinance shall be known as the "Biñan City Historical and Heritage Sites Vlogging Regulation Ordinance."

SECTION 2. DECLARATION OF POLICY.

The City of Biñan recognizes the importance of its historical and heritage sites as symbols of cultural significance and historical legacy. In order to preserve the integrity of these cultural landmarks and prevent their desecration, it is necessary to regulate vlogging and other recording activities within these areas. The city is committed to promoting responsible tourism, while respecting cultural and historical values.

SECTION 3. DEFINITION OF TERMS.

For purposes of this ordinance, the following terms shall be defined as follows:

- a. Vlogging - The practice of recording, editing, and posting videos on platforms such as YouTube, Facebook, Instagram, TikTok, or any similar social media or video-sharing platforms, typically for entertainment, informational, or promotional purposes.
- b. Heritage Site - Any location within the City of Biñan designated as having cultural, historical, or architectural significance by local authorities or recognized by the national cultural agencies.
- c. Desecration - Any act that disrespects, damages, alters, or in any way diminishes the cultural, historical, or architectural integrity of a heritage site.

SECTION 4. VLOGGING PERMIT REQUIREMENT.

No individual or group shall engage in vlogging activities within the City's historical and heritage sites without first securing a joint permit from the Biñan City Culture, History, Arts and Tourism Office (BCHATO) and Biñan Public Order and Safety Office (POSO). This permit shall be issued based on the following conditions:

- a. The vlogging activity should not disturb the public, detract from the site's historical value, or cause damage to the property.
- b. The applicant must submit a brief description of the intended vlog content, including the date, time, and duration of filming.
- c. Applicants must demonstrate an understanding and commitment to the preservation of the heritage site, including compliance with any guidelines set by BCHATO, POSO or other relevant authorities.

SECTION 5. PROHIBITED VLOGGING ACTIVITIES.

The following actions are prohibited within historical and heritage sites of the City of Biñan:

- a. Vlogging that involves climbing or physically altering the site's structures or objects, including murals, statues, walls, and monuments.
- b. Vlogging that includes offensive, disrespectful, or inappropriate content that may defame or desecrate the historical or cultural significance of the site.
- c. Use of loud or disruptive equipment, such as loudspeakers, microphones, or lights, that could disturb the peace of the site or surrounding areas.
- d. Activities that impede the flow of visitors, damage property, or create safety hazards.
- e. Any vlogging activity that promotes illegal, unsafe, or harmful behavior, including vandalism or destruction of property.

SECTION 6. CONDITIONS FOR VLOGGING ACTIVITIES.

All approved vlogging activities must adhere to the following guidelines:

- a. Vloggers must respect the heritage site's hours of operation and follow any specific regulations set by BCHATO or management of the site.
- b. Vloggers must avoid any action that could lead to the alteration or damage of the site, including but not limited to touching, moving, or disturbing items of historical significance.
- c. All filming and photography must be conducted in designated areas to minimize the risk of damage to restricted or sacred zones of the heritage site.
- d. Vloggers must clean up after themselves and remove any trash or equipment left behind.

SECTION 7. ENFORCEMENT AND PENALTIES.

Any person found violating the provisions of this ordinance shall be subject to the following penalties:

- a. First Offense – A fine of P5,000 and suspension of vlogging privileges within the City for a period of one (1) month.
- b. Second Offense – A fine of P10,000 and suspension of vlogging privileges within the City for a period of three (3) months.
- c. Third Offense – A fine of P15,000, revocation of vlogging privileges within the City for one (1) year, and possible legal action based on the severity of the violation. In cases where the violation involves desecration or damage to historical or cultural property, the violator may be subject to additional penalties as prescribed by existing national laws governing heritage sites.

SECTION 8. RESPONSIBILITIES OF VLOGGERS.

Vloggers shall:

- a. Ensure compliance with all applicable laws and regulations regarding the preservation of heritage sites.
- b. Actively promote awareness about the importance of protecting historical and cultural heritage.
- c. Provide full cooperation with law enforcement officers, local government officials and site managers when requested.

SECTION 9. ROLE OF BCHATO AND POSO.

The BCHATO and POSO may create a special joint task force who shall oversee the implementation and enforcement of this ordinance, and may:

- a. Develop additional guidelines and procedures to regulate vlogging activities in heritage sites.
- b. Monitor the impact of vlogging activities on heritage sites and propose measures to minimize negative effects.
- c. Recommend periodic reviews and amendments to this ordinance to ensure its effectiveness in preserving Biñan's historical and cultural integrity.

SECTION 10. REPEALING CLAUSE

All ordinances, resolutions, and executive orders or parts thereof, inconsistent with the provisions of this Ordinance, are hereby repealed or modified accordingly.

SECTION 11. SEPARABILITY CLAUSE

If any part or provision of this Ordinance is held invalid or unconstitutional, the remainder of the Ordinance not affected thereby shall remain in full force and effect.

SECTION 12. EFFECTIVITY

This Ordinance shall take effect immediately upon its approval.

UNANIMOUSLY APPROVED.

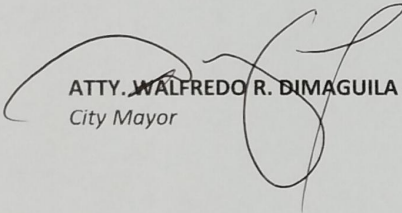
CERTIFIED CORRECT:


GERONIMO D. ROMANTIGUE, MDMG
City Council Secretary

ATTESTED BY:


Hon. ANGELO B. ALONTE
City Vice Mayor/Presiding Officer

APPROVED BY:


ATTY. WALFREDO R. DIMAGUILA JR.
City Mayor